

OFFICE OF THE CITY LEGAL OFFICER
City Hall, Divao City

SUBJECT: RESOLUTION NO. 333-ORDINANCE NO. 51
SERIES OF 1989, "AN ORDINANCE REGU-
LATING THE OPERATION OF VIDEO GAME
MACHINES FOR COMMERCIAL PURPOSES IN
THE CITY OF DIVAO.

1st Indorsement
May 31, 1989

Respectfully returned to the Honorable Sangguniang Panlungsod, through the Office of the City Mayor, both this City, the herein Resolution No. 333 with its corresponding Ordinance No. 51, series of 1989, "AN ORDINANCE REGULATING THE OPERATION OF VIDEO GAME MACHINES FOR COMMERCIAL PURPOSES IN THE CITY OF DIVAO," with the following findings, comments and recommendation:

The foregoing resolution with its corresponding ordinance refers to the overridden veto of the Honorable City Mayor on Resolution No. 97, with its corresponding Ordinance No. 17, series of 1989, in which Councilor Victorio S. Advincula proposed the repassage of said resolution/ordinance by inserting therein the words "limited" between "not" and "to" and "he" between "fee" and "shall" under Section 3 thereof, to read as follows:

"Sec. 3. - Before any person is allowed to engage in the business of offering the use of Video Games such as, but not limited to "Family Computer", "Atari" and/or other similar Video contrivance to the public for a fee, ~~he~~ shall first secure a permit from the Office of the City Mayor."

The foregoing is only an amendment to Section 3 of the overridden veto in Resolution No. 97, with its corresponding Ordinance No. 97, series of 1989.

At the outset, it is to be noted that under subparagraph (c) and (d) of Section 16, D, Ordinance and Resolutions of the Implementing Rules and Regulations of Batas Pambansa Blg. 337, otherwise known as the Local Government Code, provides that:

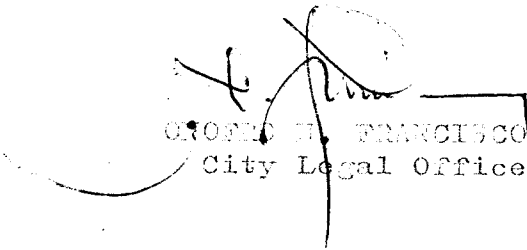
- c. The sanggunian may override the veto of the local chief executive concerned by two-third (2/3) vote of all its members, thereby making the ordinance or resolution effective.
- d. The local chief executive may veto an ordinance or resolution only once. (underlining ours)

A cursory perusal of the foregoing provisions will show that the overridden veto on Resolution No. 97 with its corresponding Ordinance No. 17, series of 1989 is still in forced and effective as to the other sections provided therein. It is only in Section 3 of the same resolution/ordinance which was amended by

by the herein Resolution No. 333 with its corresponding Ordinance No. 51, series of 1989.

It is to be noted that under the foregoing provision of Section 16, D., sub-paragraph (d) of PB 337, the City Mayor may only veto an ordinance or resolution once. Considering that the Honorable City Mayor can no longer veto the herein attached resolution/ordinance which still contains some substantial defects such as but not limited to the passage of ordinances which shall have only one subject matter, it is the opinion of this Office that the herein attached Resolution No. 333-Ordinance No. 51, series of 1989 be allowed to lapse into law considering that the veto by His Honor, the City Mayor on Resolution No. 97 with its corresponding Ordinance No. 17, series of 1989 was the consequence of these defects.

RESPECTFULLY SUBMITTED.


JOSEPH H. FRANCISCO, SR.
City Legal Officer

CHP:

9th City Council
17th Regular Session
Series of 1989

Republika ng Pilipinas
LUNGSON NG DAVAO
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG
PANLUNGSOD, CITY OF DAVAO, HELD ON THURSDAY, MAY 4, 1989.

PRESENT:

Vice Mayor Benimador B. Sufio, Jr., Presiding Officer
Councillor Luis G. Bonguyan
Councillor Benifacio E. Militar
Councillor Alexis G. Almendras
Councillor Leonardo R. Avila, III
Councillor Nilo G. Abellera
Councillor Aristeo R. Albay
Councillor Antonio M. Vergara
Councillor Gerardo C. Naguales
Councillor Valentine G. Banzon
Councillor Riosada A. Mahipus
Councillor Tomas Monteverde, Jr.
Councillor Antonio S. Castillo
Councillor Danilo G. Bayanghirang
Councillor Jaime Q. Rodriguez
Councillor Gerason H. Malanyaon
Councillor Cesar G. Rebille
Councillor Renato S. Rangoy
Councillor Teofilo M. Vener
Councillor Guillermo G. Sildaña
Councillor Shane L. Belar
Councillor Rafael A. Reyes, Jr.
Councillor Teodorico T. Timis
Councillor Nicmar A. Magno
Councillor Victorio S. Advincula

[Handwritten signature and date 5/25/89]

ABSENT:

Councillor Senforiano B. Alarado - (OB-Manila)
Councillor Liberio V. Lumanin - -do-
Councillor Agesto P. Fuentes - -do-
Councillor Natute H. Poli

* * *

RESOLUTION NO. 333

After the Body has overridden the Vote of His Honor, the Mayor on Resolution No. 97, with its corresponding Ordinance No. 17, Series of 1989, Councillor Victorio S. Advincula proposed the repassage of said resolution/ordinance by inserting therein the words "limited" between "not" and "to" and "he" between "fee" and "shall" under Section 3 thereof, to read as follows:

"Sec. 3.- Before any person is allowed to engage in the business of offering the use of Video Games such as, but not limited to "Family Computer", "Atari" and/or other similar Video contrivance to the public for a fee, he shall first secure a permit from the Office of the City Mayor."

Resolution No. III, Ordinance No. 51,
Series of 1989, dated 4/2

After careful deliberation, on motion of Councillor Victorio S. Advincula, duly seconded by Councillors Jaime Q. Rodriguez and Shano L. Baler, with the previous co-sponsorship of Councillors Liborio V. Lomana, Aristeo R. Albay, Cesar G. Robillo and Dionisio A. Mahigas, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance, entitled:

ORDINANCE NO. 51

AN ORDINANCE REGULATING THE OPERATION OF VIDEO GAME MACHINES FOR COMMERCIAL PURPOSES IN THE CITY OF DAVAO.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1.- COVERAGE - This Ordinance shall be known as "AN ORDINANCE REGULATING THE OPERATION OF VIDEO GAME MACHINES FOR COMMERCIAL PURPOSES IN THE CITY OF DAVAO".

SEC. 2.- PERSON - As used in this Ordinance, "Person" shall mean both natural and juridical person. Any person engaged in the business of offering the use of Video Games like "Family Computer", "Atari", and other similar contrivance to the public for a fee shall be governed by this Ordinance.

SEC. 3.- Before any person is allowed to engage in the business of offering the use of Video Games such as, but not limited to "Family Computer", "Atari", and/or other similar Video contrivance to the public for a fee, he shall first secure a permit from the Office of the City Mayor.

SEC. 4.- Upon the effectivity of this Ordinance, no person shall be allowed to establish, maintain and/or operate Video Game Machines for commercial purposes within a distance of "one hundred (100) lineal meters" from the gate of any elementary and secondary school. Existing Video Game establishments which are within the "one hundred (100) lineal meter" distance from the gate of any Elementary or Secondary School shall be required to transfer their establishments to other places within a period of sixty (60) days from the effectivity of this ordinance.

Resolution No. 333, Ordinance
No. 51, series of 1989, part d.

SEC. 5. Children from 6 to 17 years of age shall not be allowed inside Video Games establishments from 7:00 o'clock in the morning to 5:00 o'clock in the afternoon during school days.

SEC. 6.- Video Game establishments shall be required to issue admission tickets with serial numbers, indicating therein the name of the establishment and the admission price, the same be registered with the City Treasurer's Office. 25/89

SEC. 7.- TAX ON ADMISSION - The City shall collect a tax equivalent to thirty (30%) per cent of the admission price which shall be due and payable within the first twenty (20) days of the following month due the owners of the Video Game establishments and such tax shall be determined on the basis of a true and complete returns of the amount of gross receipts derived during the preceding month. If tax is not paid within the time fixed hereinabove, the taxpayer shall be subject to 25% surcharges and 14% interests. In case of willful neglect to file the returns and pay the tax within the time required, or in case fraudulent returns is filed or false returns is willfully made, the taxpayer shall be subject to a penalty of fifty (50) percent of the correct amount of the tax due in addition to the interests and surcharges above-mentioned.

SEC. 8.- PENALTY - Any person who violates any or all of the provisions of Sections 3, 4, 5 and 6 of this Ordinance shall upon conviction, suffer a mandatory penalty of six months imprisonment or a fine of not more than one thousand (\$1,000.00) Pesos or both such fine and imprisonment upon the discretion of the court. Should the offense be committed by a juridical person, the Chairman, President, Directors, partners or Manager responsible therefor, shall be the persons to be held responsible.

SEC. 9.- Ordinance No. 1, Series of 1974, as amended is hereby further amended accordingly to this effect.

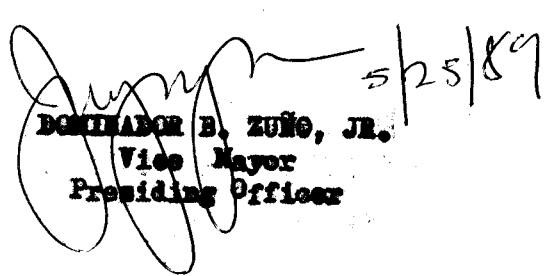
Resolution No. 333, Ordinance No.
51, series of 1989, cont'd.:

SEC. 10.- This Ordinance shall take effect upon approval.

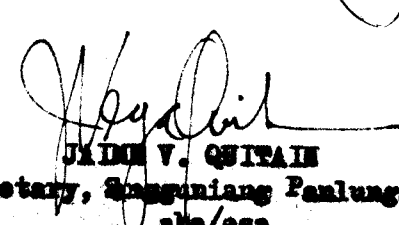
ENACTED: May 4, 1989.

CARRIED, By a majority of twenty-four (24) affirmative votes.

APPROVED:

 5/25/89
DOMINADOR B. ZUNO, JR.
Vice Mayor
Presiding Officer

ATTESTED:


JAIME V. QUITAN
Secretary, Sanguniang Panglungsod
aka/esa

APPROVED: _____, 1989

RODRIGO R. BUTERA
Mayor, City of Davao

ATTESTED:

GABRILO T. GIMPOSAW
City Secretary